

 Internal Case Management System Worksheet - Case Closing					Top Allegation USE OF FORCE - LEVEL 3	Group G54-GROUP 54 - FORCE Date of This Report 02/24/2021	
Date Reported 07/22/2020	Date Assigned 07/22/2020	IAB Log No. 2020- 17793	Case No. (G54) FI- 2020-628	Folder Type FORCE INVESTIGATION	Preliminary Case Type FORCE INVESTIGATION	Follow-Up No.	Worksheet Tracking No. 4917123

Topic/Subject (Case Closing) CASE CLOSING - PARTIALLY SUBSTANTIATED / MINOR PROCEDURAL VIOLATION	Activity Date 02/24/2021	Activity Time 11:30
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

Case #:
FI20-0628

Log #:
2020-17793

Subject Officer #1:
PPO Matthew L. Perry, Tax #966272, 81st Precinct
Date of Appointment: 07/02/2018
Probation (at time of incident): Yes
Current Duty Status: Active (Full Duty)

Subject Officer #2:
Sgt. Joseph Zaikowski, Tax #931470, 90th Precinct
Date of Appointment: 07/01/2002 (Promoted to Sergeant on 11/30/2007)
Probation (at time of incident): No
Current Duty Status: Active (Full Duty)

Subject Officer #3:
PO Taylor A. Corcoran, Tax #964456, 75th Precinct
Date of Appointment: 10/18/2017
Probation (at time of incident): No
Current Duty Status: Active (Full Duty)

Subject Officer #4:
PO Stephanie M. Chen, Tax #962087, 60th Precinct
Date of Appointment: 07/13/2016
Probation (at time of incident): No
Current Duty Status: Active (Full Duty)

Subject Officer #5:
Lt. Thomas Hardell, Tax #936730, Patrol Borough Brooklyn North
Date of Appointment: 01/10/2005 (Promoted to Lieutenant on 08/22/2017)
Probation (at time of incident): No
Current Duty Status: Active (Full Duty)

Subject Officer #6:
Unidentified Officer
Date of Appointment: N/A
Probation (at time of incident): N/A
Current Duty Status: N/A

Date Case Received:
July 27, 2020

Date of Occurrence:
June 3, 2020

Administrative Statute of Limitations:

December 3, 2021

Classification:
C2

Investigator:
Lt. Steven Ettlinger, Tax #901519

Team Leader:
DI Joseph Profeta, Tax #924360

Overall Case Disposition:
Partially Substantiated / Minor Procedural Violation

Details:
Log #2020-17793

On 07/21/20, at 1245 hours, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED] by an officer with possible shield #5130 (later identified as PO Taylor A. Corcoran, 75th Precinct). Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry, 81st Precinct issued [REDACTED] a summons (Summons [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital due to a prior injury (fractured arm). Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Callout #2020-17793 was handled by Group #54.

Identification and Interview of Reporter:

The New York State Attorney General's Office was listed as the reporter in this case due to the fact that on 07/21/20, they emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED] by an officer with possible shield #5130. The New York State Attorney General's email to the IAB Command Center generated this investigation.

Identification and Interview of Arrested Person:

[REDACTED] DOB: [REDACTED], is a female White, who resides at [REDACTED]. She is listed as an arrested person in this case due to the fact that on 06/03/20, PPO Perry issued [REDACTED] a summons (Summons [REDACTED]) for [REDACTED]. During this investigation, investigators from Group #54 made numerous attempts to interview [REDACTED] via landline and by responding to his residence, which concluded with negative results. [REDACTED] wasn't interviewed in regards to this investigation. It should be noted that on 08/28/20, investigators from Group #54 responded to [REDACTED] residence. Upon arrival, [REDACTED] answered the door and refused to cooperate. In fact, [REDACTED] claimed that he was someone else and refused to show any identification. [REDACTED] further stated, "No, I don't need your help". It should also be noted that during this investigation, [REDACTED] attorney, [REDACTED] called the office of Group #54 to inquire why we were calling his client. We requested to set up an interview with [REDACTED] which was met with negative results. No other information of investigative value was obtained.

Identification and Interview of Witnesses:

EMT Elizabeth Flores, Shield #4231 was identified as a witness due to the fact that she treated [REDACTED] at the incident location and transported [REDACTED] to Methodist Hospital. On 11/05/20, Sgt. Liguori interviewed EMT Flores, via landline, in regards to this investigation. Upon interview, EMT Flores stated that on 06/03/20, her unit was dispatched to the Cadman Plaza area to treat a patient, but when they arrived, the patient was already being treated by another EMS unit. Her unit was then directed to stand by at the location. After approximately 30 minutes, her unit was "flagged down" by an officer, who directed them to a MTA bus for a new patient ([REDACTED]). Upon arrival, EMT Flores recalled that [REDACTED] was a transgendered female that had an obviously fractured humerus and a dislocated shoulder. EMT Flores stated that [REDACTED] informed her that while she was riding her bike, she was thrown to the ground and her arm was broken when she was placed into handcuffs. EMT Flores also recalled that [REDACTED] was in a lot of pain. EMT Flores stated that an officer (identified as PO Perry) escorted [REDACTED] to Methodist Hospital. No other information of investigative value was obtained.

EMT William Curley, Shield #4231 was identified as a witness due to the fact that he treated [REDACTED] at the incident location and transported [REDACTED] to Methodist Hospital. On 11/05/20, Sgt. Liguori interviewed EMT Curley, via landline, in regards to this investigation. Upon interview, EMT Curley stated that on 06/03/20, he and his partner (EMT Flores) were called to the area of Cadman Plaza, initially to treat an injured MOS. When they arrived, the MOS was already being treated by another unit so they were ordered to stand by in order to treat any additional patients that might arise. While at the location, they were approached by an unidentified Sergeant, who directed them to an MTA bus to treat a patient ([REDACTED]). Upon arrival, the EMT's observed that [REDACTED] had an obviously broken arm. EMT Curley stated the upper arm bone, had an almost 90-degree bend in the middle of it. He also stated that [REDACTED] had indications of a dislocated shoulder and bruising. EMT Curley stated that [REDACTED] informed him that a female officer pulled her hair, threw her to the ground, and bent her arm back until it snapped. [REDACTED] also informed him that he was struck with a baton in the back. EMT Curley stated that [REDACTED] was subsequently removed to Methodist Hospital. No other information of investigative value was obtained.

Identification and Interview of Witness Officers:

PO Brian P. McGurran, 81st Precinct was identified as a witness officer due to the fact that he was assigned to the Cadman Plaza and Tillary Street Detail. His interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

PO Maxime Archange, 81st Precinct was identified as a witness officer due to the fact that he was assigned to the Cadman Plaza and Tillary Street Detail. PO Archange wasn't interviewed in regards to this investigation.

DTS Reynaldo Gonzalez, 84th Precinct was identified as a witness officer due to the fact that he was assigned to the Cadman Plaza and Tillary Street Detail. DTS Gonzalez wasn't interviewed in regards to this investigation. He retired from the Department on 08/01/20.

PO Gustavo J. Jaramillo, 84th Precinct was identified as a witness officer due to the fact that he was assigned to the Cadman Plaza and Tillary Street Detail. PO Jaramillo was assigned to the MTA bus and requested EMS for [REDACTED]. His interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

PO Joseph P. McDonald, 60th Precinct was identified as a witness officer due to the fact that he was identified as a witness officer due to the fact that he was assigned to the Cadman Plaza and Tillary Street Detail. PO McDonald wasn't interviewed in regards to this investigation.

Identification and Interview of Subject Officers:

PPO Matthew L. Perry, 81st Precinct was listed as a subject officer due to the fact that on 06/03/20, he issued [REDACTED] a summons (Summons [REDACTED]) for [REDACTED]. His interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

Sgt. Joseph Zaikowski, 90th Precinct was listed as a subject officer due to the fact that his shield number is 5130. It should be noted that Sgt. Zaikowski was incorrectly listed as a subject officer in the case by the IAB Command Center. Group #54 later identified the actual subject officer as PO Taylor A. Corcoran, who's shield number is 5130. His interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

PO Taylor A. Corcoran, 75th Precinct was listed as a subject officer due to the fact that [REDACTED] accused her of breaking his arm. Her interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

PO Stephanie M. Chen, 60th Precinct was listed as a subject officer due to the fact that she was identified as PO Corcoran's partner. She handcuffed [REDACTED]. Her interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

Lt. Thomas Hardell, Patrol Borough Brooklyn North was listed as a subject officer due to the fact that he instructed PO Perry to issue [REDACTED] a summons for [REDACTED]. Lt. Hardell also informed PO Perry that [REDACTED] injury was a preexisting injury. His interview is documented under the "Patrol Guide 206-13 Hearings" section of this report.

Unidentified Officer was listed as a subject officer due to the fact that an unidentified officer performed a forcible takedown on [REDACTED]. Furthermore, while [REDACTED] was on the ground, the officers punched and kicked him all over his body.

Canvass:

During this investigation, investigators from Group #54 responded to the vicinity of Cadman Plaza to conduct a canvass for witnesses and video surveillance. A canvass of the surrounding area resulted in negative results. No witnesses or video footage of investigative value was obtained.

Review of Department Records:

A review of [REDACTED] MTPF (#2020-084 [REDACTED]) related to this incident disclosed that on 06/03/20, PPO Perry transported [REDACTED] to Methodist Hospital. PPO Perry documented that he was informed by Lt. Hardell that [REDACTED] seemed to be suffering from a preexisting injury (fractured arm). No other information of investigative value was obtained.

A review of "C" Summons # [REDACTED] disclosed that on 06/03/20 at 2200 hours, PPO Perry issued [REDACTED] a summons for [REDACTED] in the vicinity of 271 Cadman Plaza East. Details of the summons are as follows: [REDACTED]

[REDACTED] It should be noted that the summons was dismissed.

A FORMS inquiry disclosed that there were no TRI Reports prepared in regards to this incident.

A review of the Cadman Plaza and Tillary Street Detail Roster from 06/03/20, assisted investigators from IAB with identifying the

officers that were involved with this incident. No other information of investigative value was obtained.

A review of the ICAD database disclosed a total of 1 job related to his incident. Details are as follows:

► ICAD # [REDACTED]: This job was generated on 06/03/20 at 2138 hours, after PO Jaramillo requested EMS to his location (Cadman Plaza West and Tillary Street) for a sick prisoner ([REDACTED]) who was subsequently removed to Methodist Hospital. No other information of investigative value was obtained.

A review of Department Body Worn Camera's related to this incident disclosed the following information:

► PO Maxime Archange: The video captured PO Corcoran and PO Chen exchanging metal cuffs for flex cuffs on [REDACTED]. [REDACTED] is heard stating, "I'm not fighting" and seemed to be out of breath. [REDACTED] is also heard stating "My arm feels really fucking weird". [REDACTED] is then escorted by Police (identified as PO Corcoran and PO Chen) in the street to a MTA bus. No other information of investigative value was obtained.

► DTS Reynaldo Gonzalez: The video commenced with officers standing in front of a large group of protesters as they kneeled down close to the intersection of Cadman Plaza West and Pierrepont Street. The officers walk towards protesters and begin to push the protesters, who are attempting to stand their ground. Officers begin to make arrests. [REDACTED] isn't observed on the video footage. No other information of investigative value was obtained.

► PO Gustavo J. Jaramillo: There are 2 separate videos:

Video #1: The video commenced with PO Jaramillo guarding 8 prisoners (protestors) inside of an MTA bus. [REDACTED] wearing a white shirt and blue jeans, is brought onto the bus (rear doors) by PO Corcoran and PO Chen. [REDACTED] is screaming and complaining of pain. No other information of investigative value was obtained.

Video #2: The video commenced with PO Jaramillo standing outside the MTA Bus. He then entered the bus. While on the bus, [REDACTED] who is visibly upset, informed PO Jaramillo that their arm may be fractured. At no time does [REDACTED] make any allegations against MOS. PO Jaramillo immediately called EMS to his location for [REDACTED]. No other information of investigative value was obtained.

► PO Taylor A. Corcoran: The video captured PO Corcoran and PO Chen exchanging metal cuffs for flex cuffs on [REDACTED]. PO Corcoran and PO Chen then escort [REDACTED] to a MTA bus. While walking [REDACTED] to the bus, PO Corcoran can be heard stating, "That's what happens when you throw a bike at the cops". [REDACTED] replied, "Oh yea sure, that's what happens when you fucking attack someone with batons". PO Corcoran then responded, "Because you threw a bike at a cop, right". During the escort, [REDACTED] called PO Corcoran an embarrassment, trans, freak, and faggot. It should be noted that while PO Corcoran and PO Chen escort [REDACTED] to the bus no excessive force is observed; however, [REDACTED] is heard stating, "Can somebody stop her from hurting my shoulder? She's doing it on purpose". [REDACTED] also is yelling, "They broke my elbow". [REDACTED] is subsequently placed on the MTA bus. No other information of investigative value was obtained.

► PO Joseph P. McDonald: The video begins with officers walking with a disorderly group of protesters in the street. [REDACTED] who is wearing a white t-shirt, black back pack, and jeans is holding a bicycle. At 48 seconds into the video, [REDACTED] is captured striking officers with his bike. Officers then engage with the protesters. PO McDonald continues moving with the disorderly group. [REDACTED] is no longer observed. It should be noted that any force utilized against [REDACTED] wasn't captured on this BWC.

Computer and Related Background Checks:

An ICMS, IAPRO, CCRB and DAS-Lite background check was conducted on [REDACTED] which disclosed the following: ICMS disclosed no other incidents on file.

IAPRO disclosed no history on file.

CCRB disclosed no history on file.

DAS-Lite on [REDACTED] disclosed no arrest history on file.

A PEPR, ICMS, IAPRO, CCRB, and CPI background check was conducted on PPO Matthew L. Perry, which disclosed the following:

PEPR disclosed that PPO Perry was appointed to the Department on 07/02/2018. He is currently assigned to patrol at the 81st Precinct on the 3rd Platoon. PPO Perry has never been designated as chronic sick or placed on any type of disciplinary monitoring.

ICMS disclosed 4 other incidents on file with no similar allegations.

IAPRO disclosed no history on file.

CCRB disclosed no history on file.

CPI disclosed 4 incidents on file with no similar allegations.

A PEPR, ICMS, IAPRO, CCRB, and CPI background check was conducted on Sgt. Joseph Zaikowski, which disclosed the following:

PEPR disclosed that Sgt. Zaikowski was appointed to the Department on 07/01/2002 and was promoted to Sergeant on 11/30/2007. He is currently assigned to patrol at the 90th Precinct on the 2nd Platoon. Sgt. Zaikowski has never been designated as chronic sick or placed on any type of disciplinary monitoring.

ICMS disclosed 9 other incidents on file with no similar allegations.

IAPRO disclosed 4 incidents on file with no similar allegations.

CCRB disclosed no history on file.

CPI disclosed 9 incidents on file with no similar allegations.

A PEPR, ICMS, IAPRO, CCRB, and CPI background check was conducted on PO Taylor A. Corcoran, which disclosed the following:

PEPR disclosed that PO Corcoran was appointed to the Department on 10/18/2017. She is currently assigned to patrol at the 75th Precinct on the 3rd Platoon. PO Corcoran has never been designated as chronic sick or placed on any type of disciplinary monitoring.

ICMS disclosed 16 other incidents on file with 1 similar allegation. Details are as follows:

► Case #F119-1059 (Use of Force Level 2): On 09/28/19, PO Corcoran and her partner attempted to break up a fight. PO Corcoran performed a forcible takedown on one of the perpetrators, while her partner struck the male with a baton. As a result of this incident, the male was removed to the hospital with a laceration to his right leg. This incident was investigated by PBBN-IU and closed on 10/25/19 as Information and Intelligence.

IAPRO disclosed no history on file.

CCRB disclosed no history on file.

CPI disclosed 9 incidents on file with 1 similar allegation. Details are as follows:

► Case #F119-1059 (Use of Force Level 2): See above for further details.

A PEPR, ICMS, IAPRO, CCRB, and CPI background check was conducted on PO Stephanie M. Chen, which disclosed the following:

PEPR disclosed that PO Chen was appointed to the Department on 07/13/2016. She is currently assigned to patrol at the 60th Precinct on the 3rd Platoon. PO Chen isn't currently designated as chronic sick and has never been placed on any type of disciplinary monitoring.

ICMS disclosed 5 other incidents on file with no similar allegations.

IAPRO disclosed no history on file.

CCRB disclosed 2 incidents on file with no similar allegations.

CPI disclosed 6 incidents on file with no similar allegations.

A PEPR, ICMS, IAPRO, CCRB, and CPI background check was conducted on Lt. Thomas Hardell, which disclosed the following:

PEPR disclosed that Lt. Hardell was appointed to the Department on 01/10/2005 and promoted to Lieutenant on 08/22/2017. He is currently assigned to PBBN Personnel. Lt. Hardell has never been designated as chronic sick and isn't currently on any type of disciplinary monitoring.

ICMS disclosed 22 other incidents on file with no similar allegations.

IAPRO disclosed 16 incidents on file with no similar allegations.

CCRB disclosed 9 incidents on file with no similar allegations.

CPI disclosed 18 incidents on file with no similar allegations.

Conferrals Conducted:

Bureau Chief O'Connor, Law Enforcement Accountability Bureau: Waived criminality.

Ms. Beverley Walker, NYC Comptroller's Office: Disclosed that [REDACTED] hasn't filed a lawsuit in regards to this incident;

Lt. Ng, IAB Intel, RFI #21-113: Requested in order to obtain a character assessment for the subject officers and to obtain any

information regarding the allegation. The following information was obtained:

- ▶ The agent reported that PO Corcoran is assigned to the 75th Precinct on the 3rd Platoon. She was recently assigned to a sector. Some in the command describe her as competent, kind and hardworking, while other MOS state she can be really immature at times and doesn't carry herself in a professional manner when it's time to be serious. The agent has never observed PO Corcoran use force or be disrespectful to the public.
- ▶ The agent described PO Chen as friendly and down to earth. Everyone appreciates her professionalism and work ethic.
- ▶ The agent reported that PO Perry is assigned to the 81st Precinct Public Safety Team. He is described as hardworking, helpful to his peer, and very active. PO Perry makes a lot of arrests. He is well liked by his peers and a good guy. PO Perry always performs his duties in a professional manner.
- ▶ The agent was unfamiliar with Lt. Hardell; therefore, unable to provide any information.
- ▶ The agent was unfamiliar with the incident.

Other information of Investigative Value

A social media inquiry disclosed 2 articles related to this incident. Details are as follows:

- ▶ New Yorker (dated 06/15/20) by Emily Witt, titled, "Testifying Against Police Brutality on Zoom". [REDACTED] a doula, a breastfeeding counsellor, and a professional chef from [REDACTED], had their arm in a sling. "My arm was broken by the Police on Wednesday night, June 3rd, during a peaceful protest. As they pinned my arms, legs, and head to the ground, my whole body went limp and my bladder released. The Police had lifted me up by my zip-tied arms, breaking the right one. It took ninety minutes for me to receive medical attention". There was no location of where the incident occurred in the article. No other information of investigative value was obtained.
- ▶ Gothamist (dated 06/10/20) interviewed [REDACTED]. It was reported that [REDACTED] who is a trans woman, had her arm broken by the Police. It was also reported that she was handcuffed so tightly that her hands turned blue. [REDACTED] stated that she was mocked by the Police, who ignored her pleas for medical assistance. No other information of investigative value was obtained.

Patrol Guide 206-13 Hearings

On 09/02/20, Lt. Ettlinger and Sgt. Walsh interviewed Sgt. Zaikowski as a subject officer under provisions of PG 206-13 at 315 Hudson Street. Upon interview, Sgt. Zaikowski stated that on 06/03/20, he was assigned to report to the Icon Stadium Protest Detail, which he worked from [REDACTED] hours until [REDACTED] hours in uniform. Sgt. Zaikowski was sent to the 77th Precinct on stand by and was never in the vicinity of 271 Cadman Plaza, confines of the 84th Precinct. Sgt. Zaikowski stated that he wasn't involved in any arrests during his entire tour. During his interview, Sgt. Zaikowski confirmed that his Sergeant shield number is 5130 and that his Police Officer shield number was 19624. Sgt. Zaikowski then viewed video of this incident, which showed an officer wearing a helmet, bearing shield number 5130. After viewing the footage, Sgt. Zaikowski stated that the person in the video wasn't him. Furthermore, Sgt. Zaikowski didn't know the person in the video and denied lending his helmet to anyone. It should be noted that during this investigation the officer in the video was positively identified as PO Corcoran. No other information of investigative value was obtained. A review of Sgt. Zaikowski's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

On 09/02/20, Lt. Ettlinger and Sgt. Walsh interviewed PO Jaramillo as a witness officer under provisions of PG 206-13 at 315 Hudson Street. Upon interview, PO Jaramillo stated that on 06/03/20, he was assigned to the 84th Precinct THV, located at Tillary Street and Cadman Plaza West. He was later post changed to a MTA bus, which was being utilized to secure prisoners. PO Jaramillo stated that he wasn't involved with the arrest of [REDACTED]. PO Jaramillo stated that his first interaction with [REDACTED] was when an officer (later identified as PO Corcoran) brought [REDACTED] onto the bus. PO Jaramillo recalled that [REDACTED] complained of pain and was yelling; therefore, he immediately called EMS to the location. At no time did [REDACTED] state that any officers utilized excessive force against her. PO Jaramillo stated that [REDACTED] was subsequently removed to Methodist Hospital by another officer (identified as PO Perry), while he remained with the MTA bus. No other information of investigative value was obtained. A review of PO Jaramillo's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

On 09/03/20, Lt. Ettlinger, Sgt. Walsh, and Sgt. Mallon interviewed Lt. Hardell as a subject officer under provisions of PG 206-13 at 315 Hudson Street. Upon interview, Lt. Hardell stated that on 06/03/20, he was assigned to the Brooklyn North Incident Command Post, in uniform, in the vicinity of Cadman Plaza and Tillary Street. Lt. Hardell explained that his duties and responsibilities for the detail were to assign Sergeants and Police Officers, assigned to the Brooklyn North Protest Detail, their assignments. He was also responsible for keeping personnel updated on where the large protests groups were heading. Lt. Hardell stated that at no point was he present during the apprehension of [REDACTED]. He further stated that he remained at the THV for most of the night; however, at one point he had to leave in order to create a Police line due to the fact that a large group of protestors were attempting to take over the THV. During his tour, Lt. Hardell was informed that there were 8 prisoners on a MTA bus and one of the prisoners needed medical attention for a preexisting arm injury. It should be noted that Lt. Hardell never conducted or initiated an investigation into how [REDACTED] was injured. Lt. Hardell didn't recall what officer informed him that there was an injured prisoner. After becoming aware of this information, Lt. Hardell sent officers to the MTA bus in order to assist in transporting prisoners to Brooklyn Central Booking and to transport [REDACTED] to the hospital. Lt. Hardell state that at no time did he go onto the MTA bus and interact with anyone. At the conclusion of the interview, Lt. Hardell stated that he instructed PO Perry to issue [REDACTED] a summons for disobeying the Mayors Curfew Executive Order and to prepare a Medical

Treatment of Prisoner Form. Lt. Hardell stated that he was unaware of any allegation of excessive force and strongly believed that the injury to [REDACTED] was a pre-existing arm injury based on the information he had received. No other information of investigative value was obtained. A review of Lt. Hardell's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. Lt. Hardell failed to make any activity log entries related to this incident.

On 09/03/20, Lt. Ettlinger, Sgt. Walsh, and Sgt. Mallon interviewed PO Perry as a subject officer under provisions of PG 206-13 at 315 Hudson Street. Upon interview, PO Perry stated that on 06/03/21, he worked from [REDACTED] hours to [REDACTED] hours, with PO McGurran in uniform, assigned to RMP #5370. During the course of his tour, PO Perry stated that he was mobilized to Tillary Street and Flatbush Avenue in regards to a protest. PO Perry stated that he was posted at the foot of the Manhattan Bridge. PO Perry stated at no point was he involved in making any arrest that day. PO Perry stated that someone from the THV (identified as Lt. Hardell) reached out to his Sergeant (Sgt. Aguilar) and requested that he send 4 officers to the THV. PO Perry stated he reported to the THV and was advised by Lt. Hardell that he needed officers to assist in transporting prisoners to Brooklyn Central Booking and officers to assist in transporting a prisoner (identified as [REDACTED] to the hospital. PO Perry was instructed by Lt. Hardell to issue a summons for the Mayors Executive Order for the curfew violation and to prepare a Medical Treatment of Prisoner Form in regards to [REDACTED] having a pre-existing arm injury. PO Perry stated that his partner (PO McGurran) went to the hospital with [REDACTED]. PO Perry went with EMS and PO McGurran drove behind EMS in the RMP. PO Perry stated at no time was he told by Lt. Hardell or any officer that any excessive force was used against [REDACTED]. Furthermore, at no time did [REDACTED] inform him that Police Officers injured her by using excessive force. PO Perry stated that while in the ambulance [REDACTED] was complaining of arm pain, but never stated that officers used excessive force. While at the hospital, PO Perry learned that [REDACTED] had a fractured arm from the medical staff. At the conclusion of the interview, PO Perry stated that [REDACTED] was very uncooperative with him. PO Perry stated that besides [REDACTED] yelling about his arm, there were no other indications that she was injured. PO Perry stated there was no bruising, swelling, no appearance of a bone protruding. While attempting to ascertain pedigree information from [REDACTED] she told PO Perry to, "Get the F away from me". PO Perry stated that he issued [REDACTED] summons [REDACTED] for [REDACTED] ([REDACTED]). At approximately 2210 hours, PO Perry left the hospital. No other information of investigative value was obtained. A review of PO Perry's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

On 09/03/20, Lt. Ettlinger, Sgt. Walsh, and Sgt. Mallon interviewed PO McGurran as a witness officer at 315 Hudson Street. Upon interview, PO McGurran stated that on 06/03/21, he worked from [REDACTED] hours to [REDACTED] hours, with PO Perry in uniform, assigned to RMP #5370. During the course of his tour, at approximately 2100 hours, PO McGurran was post changed from his post to a protest detail. He was posted at the foot of the Manhattan Bridge. PO McGurran stated at no point was he involved in making any arrest that day. PO McGurran stated that someone from the THV (identified as Lt. Hardell) reached out to his Sergeant (Sgt. Aguilar) and requested that he send 4 officers to the THV. PO McGurran stated he reported to the THV and was advised by Lt. Hardell that he needed officers to assist in transporting prisoners to Brooklyn Central Booking and officers to assist in transporting a prisoner (identified as [REDACTED] to the hospital. PO McGurran stated that he and his partner (PO Perry) were instructed by Lt. Hardell to issue a summons for the Mayors Executive Order for the curfew violation and to prepare a Medical Treatment of Prisoner Form in regards to [REDACTED] having a pre-existing arm injury. PO McGurran stated that his partner (PO Perry) went to the hospital with [REDACTED]. PO Perry went with EMS and PO McGurran drove behind EMS in the RMP. PO [REDACTED] stated at no time was he told by Lt. Hardell or any officer that any excessive force was used against [REDACTED]. Furthermore, at no time did [REDACTED] inform him that Police Officers injured her by using excessive force. While at the hospital, PO McGurran learned that [REDACTED] had a fractured arm from the medical staff. At the conclusion of the interview, PO McGurran stated that [REDACTED] was very uncooperative with him. While attempting to ascertain pedigree information from [REDACTED] she told PO McGurran to get out of the room. PO McGurran stated that PO Perry issued [REDACTED] a summons [REDACTED] for [REDACTED] ([REDACTED]). At approximately 2210 hours, PO McGurran and PO Perry left the hospital. No other information of investigative value was obtained. A review of PO McGurran's activity log entries related to this incident disclosed that they were proper and within Department guidelines.

On 11/05/20, Lt. Ettlinger and Sgt. Acierno interviewed PO Chen as a subject officer at 315 Hudson Street. Upon interview, PO Chen stated that on 06/03/20, she was assigned to the 60th Precinct. At approximately 1215 hours, she was post changed to the Barclays/Cadman Plaza detail. PO Chen and approximately 6 other MOS went to the detail in a van. PO Chen stated that she went to the location with PO Corcoran. PO Chen stated that the MOS were ordered to Cadman Plaza to enforce the curfew. Upon arrival, PO Chen stated that she observed hundreds of protesters standing at the location. PO Chen stated that at some point the MOS were ordered to disperse the protesters who were violating the curfew. PO Chen described that the MOS lined up in a formation and instructed the protesters to move. While at the detail, PO Chen stated that she did interact with a protester, identified as [REDACTED]. PO Chen stated she placed handcuffs on [REDACTED] for acting disorderly. PO Chen clarified that [REDACTED] was waving a bicycle, which hit an officer (later identified as PO Corcoran), but she did not witness this action. PO Chen stated that she observed a crowd forming and then went to go find her partner, PO Corcoran, who was separated from her. PO Chen stated that she first observed [REDACTED] face down on the ground, but did not witness the forcible take down occur. PO Chen stated that other MOS were around [REDACTED] but she did not know who they were. PO Chen stated that she did not utilize a forcible take down. PO Chen stated that the only interaction that she had with [REDACTED] was when she placed the metal handcuffs on [REDACTED]. [REDACTED] was then picked up and walked to a MTA bus that was being used to transport protest prisoners. PO Chen stated that metal handcuffs were initially utilized because it was difficult to put on the plastic flex cuffs in the rain. She stated that the metal handcuffs were taken off [REDACTED] after walking away from the crowd to put on plastic flex cuffs. PO Chen did not want to lose her metal handcuffs. PO Chen was not sure what [REDACTED] was charged with, nor did she know who the arresting officer was. PO Chen stated that she did not recall [REDACTED] making any statements or shouting in pain. PO Chen stated that she did not activate her body worn camera because it had fallen off when she began to place her metal handcuffs on [REDACTED]. PO Chen stated that another MOS picked up her body camera and gave it back to her after she lodged [REDACTED] on the MTA bus. PO Chen stated that she realized her body camera was missing when she attempted to turn it on. PO Chen was shown PO Corcoran's body worn camera capturing a portion of the

incident (Reviewed on worksheet #4680982). PO Chen stated that she and additional MOS, including PO Corcoran, picked up [REDACTED] off the ground. PO Chen stated that at the time of the incident, she did not hear the statements made by [REDACTED]. PO Chen stated that she did not see [REDACTED] being struck with a baton. PO Chen stated that she observed a bike in the air. PO Chen stated she did not do anything to cause [REDACTED] pain. PO Chen stated that no MOS was hurting [REDACTED] shoulder, nor did she observe anything that would cause pain or injury. PO Chen stated that she was holding [REDACTED] by the arm and was not squeezing or putting pressure to the arm. PO Chen stated that she did not intentionally put pressure on any previously sustained injury to [REDACTED]. PO Chen stated she did not use any excessive force on [REDACTED] nor did she see any MOS do anything to break her elbow. PO Chen stated that she did not assist any further with the arrest of [REDACTED] after she was put on the MTA bus. She did not know what [REDACTED] injuries were later on. PO Chen stated that she previously observed a bicycle in the area, and that PO Corcoran informed her that she was hit with it. PO Chen clarified that PO Corcoran informed her that she felt something on her back. PO Corcoran stated that she did not know at the time that PO Corcoran was hit with the bicycle, but would later learn that this occurred. PO Chen stated that PO Corcoran did not inform her that she was hit with the bicycle while on scene. Had she known of this, she would have arrested [REDACTED] for doing so. A review of PO Chen's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. She failed to properly document her assignment.

On 11/05/20, Lt. Ettlinger and Sgt. Acierno interviewed PO Corcoran as a subject officer at 315 Hudson Street. Upon interview, PO Corcoran stated that on 06/03/20, she was assigned to the 60th Precinct Summer Detail. PO Corcoran stated that she did respond to Cadman Plaza for a protest/riot detail. PO Corcoran stated that the protest progressed to become chaotic. PO Corcoran stated that there were approximately 1000 protesters at the location. PO Corcoran stated that her and other MOS were ordered by SRG to disperse the protesters from Cadman Plaza. PO Corcoran stated that some of the protesters left and some did not. She stated that approximately 200-300 protesters remained at the location and became disorderly by throwing objects at MOS. PO Corcoran stated that a bicycle was an object that was thrown. PO Corcoran stated that the protesters were yelling and were not moving. PO Corcoran stated that she had attempted to disperse protesters who were standing on the ledge of a statue. PO Corcoran stated that she felt a bicycle hit her shoulder from behind. PO Corcoran turned around and observed a bicycle in [REDACTED] hand. PO Corcoran was shown a Twitter post still photograph of [REDACTED] which she confirmed to the person who hit her with the bicycle. PO Corcoran stated that she then observed MOS around her, who forcibly took down [REDACTED] after he resisted. [REDACTED] was then placed under arrest. PO Corcoran stated that she, along with PO Chen, assisted in placing handcuffs on [REDACTED]. PO Corcoran stated that she assisted MOS in forcibly taking down [REDACTED] who was face down with his hands underneath him. PO Corcoran stated that she attempted to remove [REDACTED] hands. PO Corcoran stated that approximately 7 or 8 MOS surrounded [REDACTED] but she did not know who these officers were. [REDACTED] was handcuffed with PO Chen's metal handcuffs. PO Corcoran stated that [REDACTED] was removed to an area with less protesters, where the metal cuffs were removed and replaced with flex cuffs. PO Corcoran stated that [REDACTED] was screaming in pain, specifically referring to pain to the arm. [REDACTED] was walked to an MTA bus. PO Corcoran stated that she was not the arresting officer and was only instructed to walk the prisoner to the MTA bus. PO Corcoran stated that she did not inform anyone that [REDACTED] hit her with a bicycle. She stated that she only obtained [REDACTED] pedigree and gave it to her partner. She had no further involvement with [REDACTED] arrest. PO Corcoran was shown her body worn camera capturing a portion of the incident (Reviewed on worksheet #4680982). PO Corcoran stated that the metal handcuffs were placed on by PO Chen. PO Corcoran stated that [REDACTED] was resisting while the metal handcuffs were placed on. PO Corcoran does not recall who ordered her to place flex cuffs on. PO Corcoran stated she made the statement "When you throw a bike at a cop, what do you think is gonna happen?" PO Corcoran stated that she was referencing [REDACTED] throwing a bike at her. PO Corcoran stated that she observed MOS with batons in their hands, but she did not witness anyone hitting any protester with a baton. PO Corcoran stated that she bent over [REDACTED] as he continued to look over his shoulder and spit in her direction. She only bent [REDACTED] to control him as he was walking. [REDACTED] did not inform PO Corcoran of any injuries at this point. PO Corcoran stated that [REDACTED] was pushing up as she was bending him forward to prevent him from spitting in her direction. PO Corcoran stated that she was not doing anything to hurt [REDACTED] and was holding his arm below his elbow. PO Corcoran was shown PO McDonald's body worn camera (Reviewed on worksheet #4681510), which shows [REDACTED] throwing the bicycle. PO Corcoran observed [REDACTED] with his bicycle while watching the video, but could not see herself. PO Corcoran she was one of the first MOS approaching the protesters on the stairs. PO Corcoran stated that the MOS attempted to take [REDACTED] under arrest after the bicycle was thrown. [REDACTED] began to resist and refuse to let go of the bicycle. PO Corcoran was not sure what [REDACTED] was charged with. PO Corcoran clarified that she did not assist with conducting a forcible take down on [REDACTED] and that [REDACTED] was already face down on the ground when she tried to handcuff him. PO Corcoran did not know which MOS conducted the forcible take down. PO Corcoran stated that she then attempted to obtain [REDACTED] hands which were underneath. PO Corcoran was successful in doing so and did so with the minimal amount of force necessary. PO Corcoran stated that she did not hear any type of bone break, but that [REDACTED] was complaining about pain to the arm. PO Corcoran stated that she only remembers turning around and seeing [REDACTED] on the ground. PO Corcoran stated that she did not witness the forcible take down occur. A review of PO Corcoran's activity log entries related to this incident disclosed that they were improper and not within Department guidelines.

Supervisory Deficiencies:

All supervisory issues were addressed during this investigation. Lt. Hardell was issued a Schedule "A" Command Discipline for conducting an improper investigations and having improper activity log entries.

Conclusion:

On 07/21/20, at 1245 hours, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED] by an officer with possible shield #5130 (later identified as PO Corcoran). Further investigation into this incident by the IAB

Command Center disclosed that on 06/03/20, PPO Matthew L. Perry, issued [REDACTED] a summons (Summons [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital due to a prior injury (fractured arm). Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". During this investigation several attempts to interview [REDACTED] in regards to this incident were met with negative results. In fact, on one occasion, [REDACTED] claimed that he was someone else and refused to show any identification. [REDACTED] further stated, "No, I don't need your help". It should also be noted that during this investigation, [REDACTED] attorney, [REDACTED] called the office of Group #54 to inquire why we were calling his client. We requested to set up an interview with [REDACTED] which was met with negative results. [REDACTED] refused to cooperate and was never interviewed in regards to this incident. This investigation disclosed PPO Perry was not involved in the arrest of [REDACTED] PPO Perry was instructed to issue [REDACTED] a summons for [REDACTED] by Lt. Hardell. Therefore, the allegation of Disputed Summons against PO Perry will be closed as Exonerated. PO Corcoran and PO Chen assisted in the arrest of [REDACTED] and escorted her to an MTA bus after she was handcuffed. Both officers were interviewed and denied striking [REDACTED] with a baton. PO Chen stated that she utilized no force against [REDACTED] while PO Corcoran admitted to assisting in the takedown of [REDACTED]. We were unable to determine if the force utilized by PO Corcoran was necessary. Therefore, the allegation of Force-Physical Force and Force - Baton against PO Chen and PO Corcoran will be Unsubstantiated. Furthermore, it should be noted that PO Corcoran failed to request medical attention for [REDACTED] after being informed that her arm was injured. PO Corcoran also failed to notify a supervisor of the details regarding the arrest and use of force utilized against [REDACTED]. She also failed to inform a supervisor that [REDACTED] alleged that she injured her arm during the arrest. As a result of her actions, she was issued a Schedule "A" Command Discipline. Regarding Lt. Hardell, he was issued a Schedule "A" Command Discipline for having improper activity log entries and failing to properly investigate how [REDACTED] sustained an injury to her arm. Therefore, the allegations of Incomplete / Improper Investigation and Improper Activity Log Entries will be closed as Substantiated. Finally, the allegation of Force - Physical Force against Sgt. Zaikowski will be closed as Unfounded. Sgt. Zaikowski was listed as a subject officer due to the fact that his shield number is 5130. It should be noted that Sgt. Zaikowski was incorrectly listed as a subject officer in the case by the IAB Command Center. Group #54 later identified the actual subject officer as PO Corcoran, who's shield number is 5130. During his PG 206-13 interview, Sgt. Zaikowski stated that on 06/03/20, he was sent to the 77th Precinct on stand by and was never in the vicinity of 271 Cadman Plaza, confines of the 84th Precinct. Sgt. Zaikowski stated that he wasn't involved in any arrests during his entire tour. The overall disposition for this case will be closed as Partially Substantiated / Minor Procedural Violation. A Programmatic Review isn't required for this case.

Subjects Involved

Name	Status	Sex	Race	Dob
	UNKNOWN UNI MEM OF SERVICE			

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Fail to Prepare Report - TRI Report	Abuse of Dept Regulations	FTR-Fail to Take/Make Report	01/30/2021	12 - Unsubstantiated	02/23/2021
	Comments This allegation was unable to prove or disprove if a TRI Report should have been prepared in regards to the force utilized against [REDACTED]. Therefore, this allegation will be closed as Unsubstantiated.					
2	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Use of Force - Level 3	Arrest Effectuated	Force Investigation Notification	02/23/2021	04 - Info. and Intelligence	02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.					
3	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Arrest Effectuated	CP-Injured Prior to PD Custody	02/23/2021	04 - Info. and Intelligence	02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and					

	use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.				
4	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 02/23/2021	Finding 12 - Unsubstantiated Finding Date 02/16/2021
	Comments This allegation was unable to prove or disprove if the force utilized by officers against [REDACTED] was necessary. Therefore, this allegation will be closed as Unsubstantiated.				
5	Full Allegation Force - Struck with - Baton Asp	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 02/23/2021	Finding 12 - Unsubstantiated Finding Date 02/23/2021
	Comments This allegation was unable to prove or disprove [REDACTED] allegation that he was struck by an officer with a baton. Therefore, this allegation will be closed as Unsubstantiated.				
Name 931470 JOSEPH ZAIKOWSKI SGT (090-090 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE Dob [REDACTED]
Allegations					
1	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 07/22/2020	Finding 10 - Unfounded Finding Date 02/23/2021
	Comments This investigation disclosed that Sgt. Zaikowski was listed as a subject officer due to the fact that his shield number is 5130. It should be noted that Sgt. Zaikowski was incorrectly listed as a subject officer in the case by the IAB Command Center. Group #54 later identified the actual subject officer as PO Taylor A. Corcoran, who's shield number is 5130. During his PG 206-13 interview, Sgt. Zaikowski stated that on 06/03/20, he was sent to the 77th Precinct on stand by and was never in the vicinity of 271 Cadman Plaza, confines of the 84th Precinct. Sgt. Zaikowski stated that he wasn't involved in any arrests during his entire tour. Therefore, this allegation is being closed as Unfounded.				
2	Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effectuated	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 07/22/2020	Finding 04 - Info. and Intelligence Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.				
3	Full Allegation Use of Force - Level 3	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 07/27/2020	Finding 04 - Info. and Intelligence Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED]				

	██████████ was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by ██████████ from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to ██████████ a chef from ██████████ about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.
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Name 936730 THOMAS HARDELL LT (165- PATROL BORO BKLYN NORTH)	Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race WHITE	Dob [REDACTED]
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Allegations

1	Full Allegation Use of Force - Level 3	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 02/23/2021	Finding 04 - Info. and Intelligence	Finding Date 02/23/2021
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Date	Time	Location	Officer	Subject	Comments
					On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.

2	Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effected	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 02/23/2021	Finding 04 - Info. and Intelligence	Finding Date 02/23/2021
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Comments
On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.

3	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 02/23/2021	Finding 07 - Substantiated	Finding Date 02/23/2021
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	Comments A review of Lt. Hardell?s activity log entries related to this incident disclosed that they were improper and not within Department guidelines. Lt. Hardell failed to make any activity log entries related to this incident. Therefore, this allegation will be closed with a finding of Substantiated. Lt. Hardell was issued a Schedule "A" Command Discipline.
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4	Full Allegation Investigate Incomplete/Improper - Other Investigation	Classification Abuse of Dept Regulations	Allegation Index Fail to Take Action/Investigate/Complete Report	Allegation Date 02/23/2021	Finding 07 - Substantiated	Finding Date 02/23/2021
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	Comments This investigation disclosed that Lt. Hardell failed to properly investigate how [REDACTED] sustained his injury. Therefore, this allegation will be closed with a finding of Substantiated. Lt. Hardell was issued a Schedule "A" Command Discipline.
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Name 962087 STEPHANIE CHEN POF (060-060 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex FEMALE	Race	Dob [REDACTED]
Allegations						
1	Full Allegation Body Worn Camera - Fail to Activate	Classification Abuse of Dept Regulations	Allegation Index BWC	Allegation Date 11/12/2020	Finding 24 - Minor Procedural Violation	Finding Date 02/23/2021
	Comments This investigation disclosed that PO Chen failed to properly activate her Department BWC in regards to this investigation. Therefore, this allegation will be closed as MPV/LOR.					
2	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 11/12/2020	Finding 24 - Minor Procedural Violation	Finding Date 02/23/2021
	Comments A review of PO Chens activity log entries related to this incident disclosed that they were improper and not within Department guidelines. She failed to properly document her assignment. Therefore, this allegation will be closed as MPV/LOR.					
3	Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effected	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 02/23/2021	Finding 04 - Info. and Intelligence	Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.					
4	Full Allegation Use of Force - Level 3	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 02/23/2021	Finding 04 - Info. and Intelligence	Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.					
5	Full Allegation Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 02/23/2021	Finding 12 - Unsubstantiated	Finding Date 02/23/2021
	Comments This investigation was unable to prove or disprove if PO Chen used any type of physical force against [REDACTED]. During her PG 206-13 interview, PO Chen stated that she didn't utilize any type of force against [REDACTED]. PO Chen stated that she only handcuffed [REDACTED]. Therefore, this allegation will be closed as Unsubstantiated.					
6	Full Allegation Force - Struck with - Baton Asp	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 02/23/2021	Finding 12 - Unsubstantiated	Finding Date 02/23/2021
	Comments					

	This investigation was unable to prove or disprove if PO Chen struck [REDACTED] with a baton. During her PG 206-13 interview, PO Chen stated that she didn't utilize any type of force against [REDACTED]. PO Chen stated that she only handcuffed [REDACTED]. Therefore, this allegation will be closed as Unsubstantiated.					
7	Full Allegation Fail to Prepare Report - TRI Report	Classification Abuse of Dept Regulations	Allegation Index FTR-Fail to Take/Make Report	Allegation Date 02/23/2021	Finding 12 - Unsubstantiated	Finding Date 02/23/2021
	Comments This investigation was unable to prove or disprove if PO Chen should have prepared a TRI Report in regards to this incident. Therefore, this allegation will be closed as Unsubstantiated.					
Name 964456 TAYLOR CORCORAN POF (075-075 PRECINCT)		Status UNIFORM MEMBER OF SERVICE	Sex FEMALE	Race WHITE	Dob [REDACTED]	
Allegations						
1	Full Allegation Use of Force - Level 3	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 09/30/2020	Finding 04 - Info. and Intelligence	Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.					
2	Full Allegation Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 09/30/2020	Finding 12 - Unsubstantiated	Finding Date 02/23/2021
	Comments This investigation was unable to prove or disprove if the force utilized by PO Corcoran against [REDACTED] was necessary. During her PG 206-13 interview, PO Corcoran stated that she didn't strike [REDACTED] with a baton. PO Corcoran further stated that she assisted in the forcible takedown of [REDACTED] and used the minimum amount of force to handcuff her. Therefore, this allegation will be closed with a finding of Unsubstantiated.					
3	Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effected	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 09/30/2020	Finding 04 - Info. and Intelligence	Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons # [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that "NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren't even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.					
4	Full Allegation Force - Struck with - Baton Asp	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 02/23/2021	Finding 12 - Unsubstantiated	Finding Date 02/23/2021
	Comments This investigation was unable to prove or disprove if PO Corcoran struck [REDACTED] with a baton. During her PG 206-13 interview, PO Corcoran stated that she didn't strike [REDACTED] with a baton. PO Corcoran further stated that she assisted in the forcible takedown of [REDACTED] and used the					

		minimum amount of force to handcuff her. Therefore, this allegation will be closed with a finding of Unsubstantiated.			
5	Full Allegation Fail to Prepare Report - TRI Report	Classification Abuse of Dept Regulations	Allegation Index FTR-Fail to Take/Make Report	Allegation Date 02/23/2021	Finding 07 - Substantiated Finding Date 02/23/2021
	Comments This investigation disclosed that PO Corcoran failed to document the force that she utilized against [REDACTED] on a TRI report. Therefore, this allegation will be closed with a finding of Substantiated. PO Corcoran was issued a Schedule "A" Command Discipline.				
6	Full Allegation Fail to Provide Medical Care -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 02/23/2021	Finding 07 - Substantiated Finding Date 02/23/2021
	Comments This investigation disclosed that PO Corcoran failed to request medical attention for [REDACTED] in regards to this incident. A review of BWC footage clearly captured [REDACTED] complaining of pain to his arm. PO Corcoran never requested or ensured that [REDACTED] received medical attention. Therefore, this allegation will be closed with a finding of Substantiated. She was issued a Schedule "A" Command Discipline.				
7	Full Allegation Fail to Notify - Supervisor	Classification Abuse of Dept Regulations	Allegation Index Fail to Make Notification	Allegation Date 02/23/2021	Finding 07 - Substantiated Finding Date 02/23/2021
	Comments This investigation disclosed that PO Corcoran failed to inform a supervisor of the details regarding the arrest and use of force utilized against [REDACTED]. Furthermore, PO Corcoran failed to inform a supervisor that [REDACTED] alleged that she injured her arm during the arrest. Therefore, this allegation will be closed with a finding of Substantiated. PO Corcoran was issued a Schedule "A" Command Discipline.				
8	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 02/23/2021	Finding 07 - Substantiated Finding Date 02/23/2021
	Comments A review of PO Corcoran's activity log entries related to this incident disclosed that they were improper and not within Department guidelines. Therefore, this allegation will be closed with a finding of Substantiated. PO Corcoran was issued a Schedule "A" Command Discipline.				
Name 966272 MATTHEW PERRY POM (081-081 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE
					Dob [REDACTED]
Allegations					
1	Full Allegation Disputed Summons - SAP (C-Summons) - Copy of Summons issued	Classification Miscellaneous	Allegation Index SUM-Disputed Criminal Court Summons	Allegation Date 07/22/2020	Finding 01 - Exonerated Finding Date 02/23/2021
	Comments This investigation disclosed that on 06/03/21 at 2200 hours, PPO Perry issued ?C? Summons # [REDACTED] to [REDACTED] for [REDACTED] in the vicinity of 271 Cadman Plaza East. During his PG interview, PPO Perry stated that Lt. Hardell instructed him to issue the summons. A review of the details section of the summons disclosed that PPO Perry was informed by Lt. Hardell that [REDACTED] was observed in a public street and with the intent to cause disruption with 2 others. When ordered to disperse by the Police, [REDACTED] refused and remained at the location. Furthermore, during Lt. Hardell's PG interview, he stated that he instructed PPO Perry to issue [REDACTED] the summons. Therefore, this allegation will be closed with a finding of Exonerated.				
2	Full Allegation Use of Force - Level 3	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 02/23/2021	Finding 04 - Info. and Intelligence Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General's Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons				

	# [REDACTED] for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that ?NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren?t even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.				
3	Full Allegation Prisoner Incident - Injured Prior to NYPD Custody - MOS Involved	Classification Arrest Effectuated	Allegation Index CP-Injured Prior to PD Custody	Allegation Date 02/23/2021	Finding 04 - Info. and Intelligence Finding Date 02/23/2021
	Comments On 07/21/20, the New York State Attorney General?s Office emailed the IAB Command Center a brief synopsis of an incident that occurred on 06/03/20, at or near Cadman Plaza, involving the arrest and use of force against [REDACTED]. Further investigation into this incident by the IAB Command Center disclosed that on 06/03/20, PPO Matthew L. Perry issued [REDACTED] a summons (Summons [REDACTED]) for [REDACTED]. A Medical Treatment of Prisoner Form disclosed that [REDACTED] was removed to Methodist Hospital and diagnosed with a fractured arm. Furthermore, the IAB Command Center located a Twitter Post by [REDACTED] from 06/09/20, which stated that ?NYPDnews officer #5130 has some explaining to do to [REDACTED] a chef from [REDACTED], about why and how she felt the need to break their arm during a peaceful protest last week. They aren?t even interrupted by @NYCCouncil when time is up. MOST POWERFUL yet today". Therefore, this allegation will be closed with a finding on Information and Intelligence.				

ATTACHMENT

1	 <u>'COMMAND DISCIPLINE - PO TAYLOR CORCORAN (NOT ADJUDICATED)'</u>
2	 <u>'COMMAND DISCIPLINE - LT THOMAS HARDELL (ADJUDICATED)'</u>
3	 <u>'LETTER OF REFERRAL - PO STEPHANIE CHEN'</u>
4	 <u>'NOTIFICATION OF DISPOSITION - PO STEPHANIE CHEN'</u>
5	 <u>'NOTIFICATION OF DISPOSITION - PO TAYLOR CORCORAN'</u>
6	 <u>'NOTIFICATION OF DISPOSITION - LT. THOMAS HARDELL'</u>
7	 <u>'NOTIFICATION OF DISPOSITION - PO MATTHEW PERRY'</u>
8	 <u>'NOTIFICATION OF DISPOSITION - SGT. JOSEPH ZAIKOWSKI'</u>

Reporting Officer:	Rank LCD	Name ETTLINGER STEVEN		Tax Reg. No. 901519		Command G54-GROUP 54 - FORCE
Reviewing Supervisor:	Manner of Closing CM - PARTIALLY SUBSTANTIATED / MINOR PROCEDURAL VIOLATION	Date Reviewed 02/25/2021	Date of Next Review	Name CORRADO DERRICK		Supv. Tax No. 897238
Endorser:	Rank DI	Name PROFETA JOSEPH	Tax Reg. No. 924360	Command G54-GROUP 54 - FORCE	DateTime Reviewed 02/24/2021 12:22	Status Approved
Comments THE UNDERSIGNED REVIEWED ALL STEPS TAKEN IN REGARDS TO THIS INVESTIGATION AND DETERMINED THAT ALL REASONABLE STEPS THAT WOULD AIDE IN THIS INVESTIGATION HAVE BEEN PERFORMED. THIS CASE WASN'T CLASSIFIED WITHIN 30 DAYS. ALL FI CASES SHOULD BE CLASSIFIED WITHIN 30 DAYS. CASE WAS RECEIVED ON 07/27/20 AND CLASSIFIED ON 01/29/21. W/S 4: SHOULD HAVE DOCUMENTED WHOSE BWC'S WERE REVIEWED. W/S ONLY DOCUMENTED THAT 3 BWC'S WERE REVIEWED WITH NEGATIVE RESULTS. W/S 55: DA'S OFFICE DOESN'T GIVE US PERMISSION TO INTERVIEW MOS. WE CONFER WITH DA'S OFFICE TO DETERMINE IF THEY ARE GOING TO PURSUE CRIMINAL CHARGES AGAINST MOS NOTE: DUE TO THE FACT THAT [REDACTED] NEVER FILED A COMPLAINT WITH IAB OR CCRB A FADO SPINOFF WAS NEVER GENERATED AND FADO ALLEGATIONS WERE NEVER ADDED TO THIS LOG. IT SHOULD BE NOTED THAT DURING THIS INVESTIGATION, INVESTIGATORS FROM GROUP #54 MADE NUMEROUS ATTEMPTS TO INTERVIEW [REDACTED] VIA LANDLINE AND BY RESPONDING TO HIS RESIDENCE, WHICH CONCLUDED WITH NEGATIVE RESULTS. [REDACTED] WASN'T INTERVIEWED IN REGARDS TO THIS INVESTIGATION. IT SHOULD BE NOTED THAT ON 08/28/20, INVESTIGATORS FROM GROUP #54 RESPONDED TO [REDACTED]'S RESIDENCE. UPON ARRIVAL, [REDACTED] ANSWERED THE DOOR AND REFUSED TO COOPERATED. IN FACT, [REDACTED] CLAIMED THAT HE WAS SOMEONE ELSE AND REFUSED TO SHOW ANY IDENTIFICATION. [REDACTED] FURTHER STATED, "NO, I DON'T NEED YOUR HELP". IT SHOULD ALSO BE NOTED THAT DURING THIS INVESTIGATION, [REDACTED]'S ATTORNEY, [REDACTED] CALLED THE OFFICE OF GROUP #54 TO INQUIRE WHY WE WERE CALLING HIS CLIENT. WE REQUESTED TO SET UP AN INTERVIEW WITH [REDACTED] WHICH WAS MET WITH NEGATIVE RESULTS. NOTE: A POST-CLOSING WORKSHEET WILL BE PREPARED ONCE PO CORCORAN'S SCHEDULE ?A? COMMAND DISCIPLINE IS ADJUDICATED. THE CD WAS SENT OUT ON 02/18/21. ALL CASE INACTIVITY PERIODS MUST BE DOCUMENTED. THE FOLLOWING LAPSES WERE IDENTIFIED: 08/05/20 TO 08/28/20, 09/09/20 TO 09/29/20, 11/26/20 TO 12/12/20, 12/12/20 TO 12/26/20, 12/26/20 TO 01/27/20.						
Endorser:	Rank INS	Name CORRADO DERRICK	Tax Reg. No. 897238	Command Z03-ZONE 3	DateTime Reviewed 02/25/2021 13:46	Status Approved
Comments APPROVE						

 Internal Case Management System Worksheet - Post Closing Information					Top Allegation USE OF FORCE - LEVEL 3	Group G54-GROUP 54 - FORCE Date of This Report 03/09/2021	
Date Reported 07/22/2020	Date Assigned 07/22/2020	IAB Log No. 2020- 17793	Case No. (G54) FI- 2020-628	Folder Type FORCE INVESTIGATION	Preliminary Case Type FORCE INVESTIGATION	Follow-Up No.	Worksheet Tracking No. 4943923

Topic/Subject (Post Closing Information) ADJUDICATED COMMAND DISCIPLINE P.O. TAYLOR CORCORAN	Activity Date 03/09/2021	Activity Time 00:00
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ATTACHMENT

1  <u>'Adjudicated Command Discipline'</u>
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Details

Follow-Up Information

On Tuesday March 9,2021 at 2200 hours while present at Group 54 I am documenting the adjudicated Command discipline for P.O. Taylor Corcoran. The Command Discipline was adjudicated by Inspector John Mastronardi om March 5, 2021. The Command Discipline was Substantiated with a penalty of warn and admonish.

For Your Information.

The Command Discipline is attached to this worksheet.

Reporting Officer:	Rank LCD	Name ETTLINGER STEVEN	Tax Reg. No. 901519		Command G54-GROUP 54 - FORCE	
Reviewing Supervisor:	Manner of Closing -	Date Reviewed 03/09/2021	Date of Next Review	Name PROFETA JOSEPH		Supv. Tax No. 924360
Endorser:	Rank LCD	Name ETTLINGER STEVEN	Tax Reg. No. 901519	Command G54-GROUP 54 - FORCE	DateTime Reviewed 03/09/2021 22:08	Status Approved
	Comments APPROVED.					
Endorser:	Rank DI	Name PROFETA JOSEPH	Tax Reg. No. 924360	Command G54-GROUP 54 - FORCE	DateTime Reviewed 03/09/2021 23:45	Status Approved
	Comments APPROVED					